

suit for specific performance would have his costs against the trustee (*c*), though the trustee, where his conduct was excusable, might charge them upon the trust estate under the head of expenses.

30. **Timber.** — If trustees have a *power of sale only*, they cannot sell the estate separate from the *timber* standing upon it, though the tenant for life be without impeachment of waste, and might have cut the timber previously to the sale; and a sale so affected is absolutely void (*d*), unless it be effected subsequently to 13th August, 1859, when it may be confirmed by means of a legislative enactment in that behalf (*e*).

31. **Minerals.** — It is conceived that no distinction exists between timber and *minerals*, for both until severed form an integral part of the property. And it was accordingly, before the late Act, decided that the surface could not be sold apart from the minerals (*f*).

[*433] *25 & 26 Vict. c. 108. — But now, by 25 & 26 Vict.

c. 108, trustees and other persons (*a*) are authorised, with the previous *sanction of the Court of Chancery*, to be obtained on petition in a summary way (*b*), to sell the *surface*

(*c*) *Edwards v. Harvey*, G. Coop. 40.

(*d*) *Cholmeley v. Paxton*, 3 Bing. 207; 5 Bing. 48; S. C. *nom.* *Cockerell v. Cholmeley*, 10 B. & C. 654; 3 Russ. 565; 1 R. & M. 418; 1 Cl. & Fin. 60.

(*e*) 22 & 23 Vict. c. 35, s. 13. [As to the power of a tenant for life impeachable for waste with the consent of the trustees of the settlement to cut and sell timber under the Settled Land Act, 1882, see sect. 35 of that Act.]

(*f*) *Buckley v. Howell*, 29 Beav. 546; as to sales under the Settled Estates Act, see *Re Mallins*, 3 Giff. 126; [*Re Milward's Estate*, 6 L. R. Eq. 248.] In settling lands where there are minerals, it may be convenient to enable the trustees for sale "as to any of the premises under which minerals may lie, to sell the surface apart from the minerals, or

to sell the minerals together with, or apart from, the surface, and to grant or reserve such rights of way as in-stroke or out-stroke, and any other easements in, upon, over, or under any of the said premises as may be necessary or desirable for the winning, working, storing, selling, and carrying away of any such minerals."

(*a*) And "other persons" has been held to comprise mortgagees; *Re Beaumont's Mortgage Trusts*, 12 L. R. Eq. 80; *Re Wilkinson's Mortgaged Estates*, 13 L. R. Eq. 634.

(*b*) Where the power of sale is in the trustees, with the consent of the tenant for life, a petition by the trustees must be served on the tenant for life, but not on the remainderman, *Re Pryse's Estate*, 10 L. R. Eq. 531; [*Re Nagle's Trusts*, 6 Ch. D. 104;] and the sanction of the Court being required for the protection of the